

INSTALLER'S LIMITED WARRANTY SECONDARY & USED HOME INSTALLATIONS

Subject to, and conditioned upon, the PURCHASER'S OBLIGATIONS set forth hereinbelow, INSTALLER does hereby warrant to PURCHASER:

1. **The Installation of the previously owned manufactured home described hereinbelow will be completed at the homesite in accordance with all standards, rules, regulations, administrative orders, and requirements of the Texas Department of Housing & Community Affairs.** "Installation" means and shall include the temporary or permanent construction of the foundation system and the placement of a manufactured home or manufactured home component on the foundation. The term includes supporting, blocking, leveling, securing, anchoring, and properly connection multiple or expandable sections or components and making minor adjustments. Installation does not include, without limitation or exclusions, the connection of water, sewer, electricity, gas (natural or LPG) or other utilities.
2. This warranty, subject to PURCHASER'S OBLIGATIONS, is valid only until such time as the Texas Department of Housing & Community Affairs performs an installation inspection pursuant to the provisions of the Texas Manufactured Housing Standards Act but in no event more than two years from the date of purchase or the date of installation.
3. INSTALLER will take appropriate corrective action to fulfill its warranty obligations as to installation of the home within a reasonable period of time following receipt of any defect or deviation report from the Texas Department of Housing & Community Affairs by correcting any defects or deviations set forth in the installation inspection report.
4. RETAILER shall take appropriate corrective action to fulfill its warranty obligations as to installation of the home within a reasonable period of time following receipt of a **WRITTEN** notice from PURCHASER as required by department rules to fulfill the written warranty obligation. The installer or retailer has no obligation or liability under the person's warranty for any defect described in a written notice received from the consumer more than two years after the later of the date of purchase or the date of installation.

As consideration for the installation of the home and this INSTALLER'S warranty, PURCHASER understands and agrees to abide by the following PURCHASER'S OBLIGATIONS; **PURCHASER understands and agrees that this INSTALLER'S LIMITED WARRANTY is NULL AND VOID if PURCHASER**



does NOT comply with these obligations.

1. PURCHASER is responsible for complete site preparation as described in the **SITE PREPARATION NOTICE** (TDHCA MHD FORM) and for the location of anchors in regard to underground pipes or lines. Shrubbery, trees, or any other obstacles to installation shall be removed so as to provide adequate right-of-way and access to the homesite; PURCHASER will grade and level the homesite prior to installation.

2. PURCHASER shall provide a concrete foundation or concrete footing resting on stabilized soil or rock below the frost line as a base for all blocking piers to prevent excessive settling due to soil conditions; PURCHASER is responsible for the leveling of the home after the initial leveling by the INSTALLER at installation.

3. PURCHASER shall NOT move the home from its foundation system during the warranty period; PURCHASER shall not alter or modify the foundation system during the warranty period.

INSTALLER shall not be liable for damages from loss of time, inconvenience, commercial or professional loss, loss of use of the manufactured home, incidental charges such as telephone calls, hotel bills, or other incidental or consequential damages.

**THIS WARRANTY GIVES YOU SPECIFIC LEGAL RIGHTS ... BUT ALSO
CREATES SPECIFIC OBLIGATIONS ... YOU MAY HAVE OTHER LEGAL
RIGHTS NOT SET FORTH HEREINABOVE.**

MH _____ MH MODEL _____

ID. NOS. _____ ☐ Single Section ☐ Multi-Section

HOMEOWNER _____ RETAILER _____

INSTALLATION ADDRESS _____

(Installer Name)

Date

(Installer Address)

X _____
(Homeowner Signature)

(City, State, Zip)

X _____
(Co-Homeowner Signature)

Original must be retained in Retailer file. Make copies for Consumers and other parties.

